

The Orissa Subordinate Fisheries Service Rules, 1994

Source: <https://indiankanoon.org/doc/197659364/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Odisha - Act

The Orissa Subordinate Fisheries Service Rules, 1994

ODISHA

India

The Orissa Subordinate Fisheries Service Rules, 1994

Rule THE-ORISSA-SUBORDINATE-FISHERIES-SERVICE-RULES-1994 of 1994

Published on 21 July 1995

Commenced on 21 July 1995

[This is the version of this document from 21 July 1995.]

[Note: The original publication document is not available and this content could not be verified.]

The Orissa Subordinate Fisheries Service Rules, 1994

Published vide Notification Orissa Gazette Part-3-A/21.7.1995-Notification 10780-F.A.R.D./13.7.1995

No. 10780-F.A.R.D. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Orissa is pleased to make the following rules to regulate the method of recruitment and conditions of service of the persons appointed to the posts of Fisheries Subordinate Services, namely:

Part-I Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Orissa Subordinate Fisheries Service Rules, 1994.

(2)

They shall come into force on the date of their publication in the Orissa Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires-

(a)

"Appointing authority" means the Director of Fisheries;

(b)

"Commission" means the Subordinate Staff Selection Commission constituted under Rule 3 of the Orissa Subordinate Staff Selection Commission Rules, 1993;

(c)

"Committee" means the Departmental Promotion Committee constituted under the rules;

(d)

"Demonstrator" means the Fisheries Demonstrator;

(e)

"Deputy Superintendent" means Deputy Superintendent of Fisheries;

(f)

"Director" means Director of Fisheries;

(g)

"Examination" means the competitive examination;

(h)

"Government" means the Government of Orissa (in Fisheries and Animal Resources Development Department);

(i)

"Extension Officer" means Fishery Extension Officer and includes Inspector of Fisheries and laboratory Assistant;

(j)

"Service" means the Orissa Subordinate Fisheries' Service;

(k)

"Supervisor" means the Supervisor of Fisheries and includes Master-Fishermen;

(l)

"Schedule Castes and Scheduled Tribes" means such Castes and Tribes as notified by the President of India under Articles 341 and 342 of the Constitution of India.

(m)

"Vacancy" means the vacancy/vacancies which occur and are likely to occur during the calendar year due to retirement/promotion/post creation/leave reserve post/training reserve post;

(n)

"Year" means a calendar year.

Part-II Cadre of Service

3.

Composition of Service.

(1)

The Service shall consist of the following grade of posts belonging to the categories specified against each of them-

(a)

Junior Fishery Officer

...

Category I

(b)

Deputy Superintendent of Fisheries

...

Category II

(c)

Fishery Extension Officer

...

Category III

(d)

Supervisor of Fisheries

...

Category IV

(e)

Demonstrator of Fisheries

...

Category V

(2)

Each category of post shall constitute a separate grade and number of posts in each grade and the scale of pay thereof shall be such as be decided by Government from time to time.

4.

Method of recruitment.

- Recruitment to the posts in different grade of service shall be made by the following methods, namely :

(a)

In respect of posts Junior Fishery Officer, fifty percent of the vacancies shall be filled up by direct recruitment in accordance with Rules 5 and 6 and remaining fifty per cent of the vacancies shall be filled up by promotion in accordance with Clause (a) of Sub-rule (1) of Rule 10;

(b)

In respect of Deputy Superintendent of Fisheries, the vacancies shall be filled up by promotion in accordance with Clause (b) of Sub-rule (1) of Rule 10;

(c)

In respect of Fishery Extension Officer fifty per cent of the vacancies shall be filled up by direct recruitment in accordance with Rule 5 and 6 and remaining fifty per cent of the vacancies shall be filled up by promotion in accordance with Clause (c) of Sub-rule (1) of Rule 10;

(d)

In respect of post of Supervisor the vacancies shall be filled up by promotion in accordance with Clause (d) of Sub-rule (1) of Rule 10;

(e)

In respect of Fishery Demonstrator, the vacancies shall be filled up by the direct recruitment in accordance with Rules 5 and 6.

Part-III Direct recruitment

5.

Conditions of eligibility for direct recruitment.

(1)

In order to be eligible for appointment to posts in different grades of the service by direct recruitment, a candidate must fulfil the following conditions, namely;

(a)

He/She must be a citizen of India;

(b)

He/She must not be below 18 years and above 32 years of age on the 1st day of January of the year in which the applications are invited; (or as the Government may determine from time to time);

Provided that maximum age-limit shall be relaxable by five years in case of candidates belonging to Scheduled Castes and Scheduled Tribes and such number of years in respect of other categories of candidates as may be decided by the Government;

(c)

He/She must have obtained the following qualifications, namely;

(i)

For the post of Junior Fishery Officer, the candidate must have obtained minimum a Bachelor's Degree in Fishery

Science (B.F. Sc.) from a recognised University in India or abroad;

(ii)

For the post of Fishery Extension Officer the candidate must have obtained minimum a Bachelor's Degree in, Fishery Science (B.F. Sc.) from a recognised University in India or abroad;

(iii)

For the post of Demonstrator, the candidate must have passed High School Certificate Examination from a recognised University, or Board-of Secondary Education and must know swimming well;

(iv)

No weightage shall be given to any higher qualification or extra qualification other than the prescribed qualification;

(d)

He/She must be of good character and shall furnish along with the application a certificate of good character from the head of the Institution in which he/she last studied;

(e)

He/She must be of sound health, good physique, active habits and free from any organic defects, physical and mental infirmity;

(f)

He/She must not be having more than one spouse living;

(g)

He/She must be able to speak, read and write Oriya and must have passed the High School Certificate Examination with Oriya as a principal subject or passed Oriya language test equivalent to M.E. standard conducted by the Education Department of the Government of Orissa;

(h)

He/She must fulfil all other conditions, if any, fixed by the Commission other than the conditions prescribed under rule.

(2)

The candidate shall furnish with his/her application, copies of following documents attested by Gazetted Officer namely;

(a)

Certificate of Bachelor's Degree, or Certificate of High School Certificate Examination, as the case may be;

(b)

Mark sheets of all the University and Board Examinations as the case may be;

(c)

Certificate of character from the head of the Institution in which the candidate last studied;

(d)

Caste certificate granted by a competent authority (in case of candidates belonging to Scheduled Caste and Scheduled Tribe).

(3)

A person already in service of the Government shall be eligible to apply for the post meant for direct recruitment subject to his being within the prescribed age-limit qualification and further subject to his application being received through proper channel within such time as may be determined by Commission :

Provided that the Commission may entertain an advance copy of the application on the condition that the original copies together with no-objection certificate from competent authority are received within such time as may be fixed by the Commission.

(4)

(a)

No application shall be considered unless it is accompanied by a Treasury Challan showing payment into a Government Treasury an amount as may be determined by the government from time to time by an order notified in the Officer Gazette as fees for application and examination under the appropriate head of account.

(b)

No claim for refund of fee shall be entertained in any case.

(c)

Candidates belonging to Scheduled Castes and Scheduled Tribes are exempted from payment of such fees.

6.

Procedure for direct recruitment.

(1)

The Director of Fisheries shall, every year in the month of January, intimate the Commission indicating the number of vacancies in each grade separately including those anticipated in course of the year as in the Form 'A' prescribed in Orissa Subordinate Staff Selection Commission Rules, 1993.

(2)

On receipt of the vacancy position under Sub-rule (1), the Secretary to Commission in consultation with the Chairman shall issue advertisement in the leading local newspapers inviting applications from eligible candidates for appearing in the competitive recruitment examination.

(3)

The date, time and place of examination shall be intimated to each eligible candidate by the Secretary to Commission.

(4)

The decision of the Commission as to the eligibility of otherwise of a candidate for admission to the examination shall be final.

(5)

The Commission shall conduct the examination as per the subject and syllabus specified in the Appendix 'A' appended to the rules.

7.

Select list and its validity.

(1)

The Commission shall prepare the select list of the successful candidates in order of merit on the basis of recruitment examination which shall be equal to the number for vacancies for which requisitions are given to the Commission and forward the list to the appointing authority.

(2)

The appointing authority shall publish the select list in such manner as may be determined by him.

(3)

The select list for each recruitment examination shall be valid for one year from the date of its publication.

8.

Inclusion of name confers no right for appointment.

- Inclusion of name of a candidate in the merit list shall confer no right to appointment.

9.

(1)

Appointment to the post in a particular grade of the service from the select list shall be made by the Director of Fisheries in order of merit as assigned in the select list.

(2)

Failure of a candidate to join the post by the specified date in absence of extension of date by the appointing authority shall amount to forfeiture of his claim for such appointment.

Part-IV Recruitment by promotion

10.

Promotion.

(1)

Promotion to higher posts in different grades of the service as provided in Rule 4 shall be made in accordance with the provisions of the Orissa Civil Services (Criteria for Promotion) Rules, 1992 in the following manner, namely :

(a)

(i)

Promotion to the post of Junior Fishery Officer shall be made from amongst the Deputy Superintendent of Fisheries on the basis of the selection made by the Departmental Promotion Committee constituted under Sub-rule (1) of Rule 11.

(ii)

The Deputy Superintendent of Fisheries who have rendered a minimum of three years of continuous service as such on the 1st day of January of the year in which the D.P.C. meets shall be considered for promotion to the post of Junior Fishery Officer.

(b)

(i)

Promotion to the rank of Deputy Superintendent of Fisheries shall be made from amongst the Fishery Extension Officers on the basis of selection made by the Departmental Promotion Committee constituted under Sub-rule (2) of Rule 11.

(ii)

The Fishery Extension Officer who has rendered a minimum of three years of continuous service as such on the 1st day of January of the year in which the D.P.C. meets shall be considered for promotion to the post of Deputy Superintendent of Fisheries.

(c)

(i)

Promotion to the rank of Fishery Extension Officer excluding that of Laboratory Assistant shall be made from amongst the Supervisors on the basis of the selection made by the departmental Promotion Committee constituted under Sub-rule (2) of Rule 11.

(ii)

Supervisor of Fisheries who have rendered a minimum of three years of continuous service as such on the 1st day of January of the year in which the D.P.C. meets shall be considered for promotion to the post of Fishery Extension Officer.

(d)

(i)

Promotion to the post of Supervisors shall be made from amongst the Demonstrators on the basis of the Selection made by the Departmental Promotion Committee constituted under Sub-rule (2) of Rule 11.

(ii)

Demonstrator of Fisheries who has rendered a minimum of five years of continuous service as such on the 1st day of January of the year in which the D.P.C. meets shall be considered for promotion to the post of Supervisor.

(2)

No officer shall ordinarily be eligible for promotion unless he has passed such departmental examinations/tests as may be prescribed from time to time.

(3)

The Departmental Promotion Committee shall meet as and when necessary.

Part-V Formation of Departmental Promotion Committee

11.

Departmental Promotion Committee.

(1)

The Departmental Promotion Committee to consider the promotion of eligible officers to the post of Junior Fishery Officer shall consist of the following, namely :

(i)

Director of Fisheries

Chairman

(ii)

Deputy Secretary/Joint Secretary, Fisheries and Animal
Resources Development Departments

Member

(iii)

Additional Director of Fisheries

Do

(iv)

Director or his representative from Central Institute of Fresh
Water Aquiculture, Kausalyaganga

Do

(v)

Establishment Officer, Directorate of Fisheries

Member-Secretary.

(2)

The Departmental Promotion Committee consider the eligible officers for promotion to post in different grades of the Service shall consist the following namely :

(i)

Director of Fisheries
Chairman

(ii)

Additional Director of Fisheries
Member

(iii)

Senior-most Director of Fisheries (Zone)
Do

(iv)

Establishment Officer of the Directorate of Fisheries
Member-Secretary

(3)

The D.P.C. shall consider the suitability of eligible officers for promotion to different higher grades and accordingly prepare separate lists of such officer found suitable.

(4)

The list prepared by the Committee shall be valid and can be acted upon notwithstanding the absence of any of its members :

Provided that the member so absents was duly invited to attend the meeting and the majority of the members of the Committee were present at such meeting.

(5)

The list prepared by the Committee shall form the select list for promotion upon publication for general information and the said list shall remain valid for the period of one year from the date of its publication.

(6)

While considering the promotion cases of eligible officers the D.P.C. shall follow the procedure as laid down in the Orissa Civil Service (Zone of Consideration for Promotion) Rules, 1988 and the Orissa Civil Service (Criteria for Promotion) Rules, 1992.

Part-VI Probation and confirmation in service and miscellaneous matters

12.

Probation.

(1)

Every officer on appointment to a post in particular grade of the Service in substantive/permanent vacancy (other than in an officiating or temporary capacity shall be on probation. The period of probation shall be two years in case of direct recruitment and one year in case of officers appointed on promotion.

(2)

The period of probation in each case shall count from the date on which the officer joins his appointment.

(3)

The Director in any special case with reasons to be recorded extend the period of probation by such further period as he may deem fit.

(4)

The Director may terminate the service of an officer appointed on probation or revert him to his substantive appointment if during or at the end of his probation the officer has failed to give satisfactory result or it found to be otherwise unfit for permanent appointment to the service.

13.

Confirmation.

- An officer appointed on probation shall be confirmed in a substantive vacancy if he has completed the probationary period satisfactorily and if he is otherwise considered fit for confirmation by the appointing authority.

14.

Seniority.

(1)

The seniority of officers appointed to a particular grade of the Service in a particular year shall be determined with reference to their relative position in the respective select list.

(2)

When officers are recruited by promotion and by direct recruitment during a particular year, the promoted officers shall en block be considered senior to the officers directly recruited in that year irrespective of their date of appointment.

(3)

Person appointed to the service under the Orissa Civil Service (Rehabilitation Assistance) Rules, 1990 shall rank below the direct recruits appointed in that year.

15.

Departmental examination and training.

- Members of the Service shall be required to undergo such training and/or pass such test/departmental examination as may be directed by the Government from time to time :

Provided that Government may by general or special order exempt any category of members of the service from the requirement of passing the departmental examination or from undergoing training.

16.

Crossing of efficiency bar.

- An officer shall be allowed to across efficiency bar in his scale of pay if his work is considered satisfactory by the appointing authority subject to passing of the departmental examination and/or training, if any.

17.

Deputation.

- A member of the service may be deputed to serve under other services, under-taking or institution including foreign bodies, as the case may be, on such terms and conditions as may be decided by Government from time to time.

18.

Reservation.

(1)

Notwithstanding anything contained in these rules, vacancies shall be reserved for direct recruitment and promotion in favour of the candidates belonging to Scheduled Castes and Scheduled Tribes and shall be filled up according to the provisions contained in the Orissa Reservation of Vacancies in Posts and Services (for Scheduled Castes and Scheduled Tribes) Act, 1975 and the rules framed there under.

(2)

Vacancies shall be reserved for direct recruitment in favour of the candidates belonging to other categories as may be decided by Government from time to time.

19.

Gradation.

- There shall be maintained a gradation list of the persons appointed to the service separately for eachH cadre

20.

Relaxation.

- When Government are of opinion that it is necessary or expedient to do so in the public interest they may by order for reasons to be recorded in writing relax any of the provisions of these rules in respect of any class or category of employees in the interest of public service.

21.

Repeal and savings.

(1)

The Orissa Subordinate Fisheries Service Rules, 1975 are hereby repealed.

(2)

Notwithstanding such repeal, any order or action taken under the rules so repealed shall be deemed to have been made or taken under the corresponding provisions under these rules.

22.

Interpretation.

- If any question arises relating to the interpretation of these rules, it shall be referred to Government in Fisheries and Animal Resources Development Department for decision.

Appendix-A

[See Rule 6 (5)]

Syllabus

Junior Fishery Officer

1. Aquaculture
2. Fishery Biology
3. Fishery Hydrography
4. Fishery Bio-chemistry
5. Fishery Microbiology
6. Fishery Economics, Management and Statistics
7. Fishery Extension
8. Fish Processing
9. Fishery Engineering
10. Fishery Projects (Formulation)
11. V.V. Test

Fishery Extension Officer

1. Aquaculture
2. Fishery Biology
3. Fishery Hydrography
4. Fishery Economics, Management, Statistics
5. Fishery Extension
6. Fish Processing
7. Formulation of Simple Projects
8. V.V Test

Fishery Demonstration

1. General Science and General Knowledge in Oriya Language
2. Physical Test (Swimming)
3. V.V. Test

Related AI tags, queries and research notes

Translation